

SHORT FORM ORDER

INDEX NO. 600371/2021

SUPREME COURT - STATE OF NEW YORK
DCM-J - SUFFOLK COUNTY

PRESENT:**Hon. Paul J. Baisley, Jr., J.S.C.**

DIANE C. DESOUSA AND THOMAS E.
DESOUSA,

Plaintiffs,

-against-

RICHARD A. CALVAGNO II AND PATRICK
J. KARCHER,Defendants.

ORIG. RETURN DATE: August 19, 2021**FINAL RETURN DATE:** August 19, 2021**MOT. SEQ. #:** 001 MotD**PLTFS' ATTORNEY:**

JOHN CUOMO, ESQ.

11 FERN COURT

COMMACK, NY 11725

DEFT'S ATTORNEY for CALVAGNO:

JASON M. BARBARA & ASSOCIATES, P.C.

3 DAKOTA DRIVE

NEW HYDE PARK, NY 11042

DEFT'S ATTORNEY for KARCHER:

WARSHAW BURSTEIN, LLP

575 LEXINGTON AVENUE

NEW YORK, NY 10022

Upon the following papers read on this e-filed motion to compel disclosure, etc: Notice of Motion/Order to Show Cause and supporting papers by plaintiffs, dated July 15, 2021; Notice of Cross Motion and supporting papers __; Answering Affidavits and supporting papers by defendant Calvagno, dated August 5, 2021; Replying Affidavits and supporting papers __; Other __; it is

ORDERED that the motion by plaintiffs for an order compelling defendant Calvagno to respond to outstanding demands for disclosure or striking his answer is granted to the extent that a preliminary conference shall be held on October 25, 2021, and is otherwise denied.

Dated: 10/14/21


HON. PAUL J. BAISLEY, JR., J.S.C.